

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of AMY JO MURPHY License No. 00917 Respondent.	CASE NO. 14-0187 REINSTATEMENT BY CONSENT AGREEMENT
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COME NOW the Iowa Board of Behavioral Science ("Board") and Amy Jo Murphy ("Respondent") 12954 Margo Street, Omaha, Nebraska, 68138, and enter into this Reinstatement by Consent Agreement ("Agreement") pursuant to Iowa Code sections 17A.10 and 17A.18 (2019), and 645 IAC 11.31 and 31.17, stipulating as follows:

1. Respondent was issued Iowa mental health counselor license number 00917 on July 28, 2005. Respondent's license expired on September 30, 2016.

2. On February 5, 2015, the Board approved a Settlement Agreement and Final Order in the above-captioned case, in which Respondent voluntarily surrendered her license to practice as a mental health counselor to resolve the disciplinary charges described in the Notice of Hearing and Statement of Charges issued on November 6, 2014.

3. On March 21, 2018, Respondent applied for reinstatement of her license. A reinstatement hearing was held on May 11, 2018. On June 7, 2018, the Board issued an order denying her application for reinstatement. The order required Respondent to wait a minimum of one year before filing a subsequent application for reinstatement. The order indicated the Board, prior to granting a subsequent application for reinstatement, would need to see evidence of more progress in personal therapy or counseling from an independent party and an affidavit indicating whether the nature of Respondent's relationship with Client #1 is subject to a five year ban or a lifetime prohibition under 645 IAC 33.2(30)(b).

4. Respondent has submitted evidence of additional progress in personal therapy or counseling from an independent party. Respondent has submitted an affidavit and other corroborating evidence indicating Respondent's relationship with Client #1 is subject to a five year ban under 645 IAC 33.2(30)(b). Respondent's therapeutic relationship with Client #1 was terminated more than five years ago.

5. Respondent's reapplication for reinstatement demonstrates that the basis for the surrender of her license no longer exists and that it is in the public interest for her license to be reinstated, if reinstated in accordance with the terms established in this Agreement.

6. Execution of this Agreement constitutes the resolution of a contested case. Respondent has a right to reinstatement hearing before the Board but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Agreement. Once entered, this Agreement shall have

the force and effect of a Board Order entered following a contested case hearing concerning license reinstatement.

7. Respondent acknowledges that she has the right to be represented by counsel on this matter.

8. This Agreement is subject to approval by a majority of the full Board. If the Board does not approve this Agreement, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Agreement, it shall be the full and final resolution of this matter.

9. This Agreement shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

10. Respondent understands that this Agreement constitutes adverse action and that the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Agreement, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Agreement shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

13. Respondent's license shall be **REINSTATED** and, upon satisfactory completion of the requirements for reactivation described in 645 IAC 31.16, placed on **PROBATION** for a period of five (5) years, subject to the following terms and conditions:

- a. Respondent shall only practice as part of a group practice. Respondent shall not practice as a solo practitioner. Respondent shall not provide clinical supervision while on probation.
- b. Prior to returning to practice, Respondent shall submit the name and credentials of a proposed practice monitor and proposed practice monitoring plan for approval. The practice monitor must be an Iowa licensed mental health professional with no disciplinary history and training in supervision who can objectively monitor Respondent's practice. Practice monitoring shall commence upon Board approval of the practice monitor and the practice monitoring plan. Respondent shall provide the practice monitor with a copy of this Agreement. Respondent shall meet in a face-to-face setting with the practice monitor at least twice per month during the probationary period to review Respondent's clinical work and any issues related to boundaries. Respondent is responsible for all costs associated with practice monitoring and for ensuring the quarterly reports are timely submitted by her practice monitor.
- c. Respondent shall continue personal therapy on a monthly basis. Respondent may request removal of this requirement after one (1) year. The

Board retains sole discretion in deciding whether to remove this requirement.

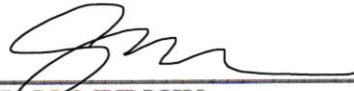
- d. Respondent shall complete a minimum of three (3) hours of continuing education related to professional boundaries for each license renewal that occurs during the probationary period.
- e. Respondent shall appear before the Board upon request for the purpose of reviewing her performance during the probationary period. Respondent shall be given reasonable notice of the date, time, and place for such appearances.
- f. Respondent shall sign all necessary release forms that may be required to obtain information related to monitoring and compliance with this Agreement.
- g. Respondent is responsible for all costs incurred to comply with these terms and conditions.
- h. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- i. Respondent and Respondent's practice monitor shall each submit quarterly reports to the Board. Each year, the Quarter 1 (January-March) report is due no later than April 5th; the Quarter 2 (April-June) report is due no later than July 5th; the Quarter 3 (July-September) report is due no later than October 5th; and the Quarter 4 (October-December) report is due no later than January 5th.
- j. The notifications and reports required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.

14. Should Respondent violate the terms of this Agreement, the Board may initiate action to impose licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC chapters 13 and 33.

This Reinstatement by Consent Agreement is voluntarily submitted by Respondent to the Board for its consideration on the ____ day of _____, 2019.

8/26/2019

Date



AMY JO MURPHY
Respondent

This Reinstatement by Consent Agreement is approved by the Iowa Board of Behavioral Science on September 12, 2019.



~~Chairperson~~ Board Executive
Iowa Board of Behavioral Science